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File No.: EXP202408969

RESOLUTION No.: R/00090/2025

Considering the complaint filed on May 1, 2024, with this Agency by A.A.A., against OPEN BANK, S.A., for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised their right of access against OPEN BANK, S.A. with NIF A28021079 (hereinafter, the respondent) and their request, as stated by the complainant, did not receive the legally established response.

The complainant states that they requested on December 25, 2023, at 21:24 hours, the recording of a telephone call made by the respondent on June 18, 2021, at approximately 17:22 hours. The request was made through the channel established by the data controller, sending an email to privacy@openbank.es, as evidenced by the screenshot and email provided.

The complainant indicates that they had previously made a request for several recordings, providing a range of dates, receiving a response from the respondent on December 19, 2023, which, in their opinion, confirms that they used the appropriate channel to exercise their right of access. However, regarding the last request of December 25, 2023, they indicate that the respondent has not responded or provided the requested recording, having passed more than four months since its submission.

The complainant concludes that telephone calls are part of the content of the right of access, considering that the voice constitutes personal data. Consequently, they request the AEPD to require the respondent to deliver the requested recording.

The complainant submits along with the complaint an exchange of emails, including the one corresponding to the request made on December 25, 2023, which they claim has not been attended to by the respondent and in which the following appears:

Good afternoon:

I inform you, after having listened to the recordings of calls that you have provided in my client area on your website, that the recording of a call received on June 18, 2021, at approximately 17:22 hours, from the number of Openbank 91 270 57 00 to my mobile ***PHONE.1 is missing.

This call is clearly included in the request that I have been making for months through this channel to Openbank.

The file sent, named "Conversaciones es 20231219 1702991659534.zip," contains these three recordings:

- 18062021 1306.mp3
- 18062021 1344.mp3
- 18062021 1400.mp3

From which it is clearly inferred that they are from June 18, 2021, between 13:06 and 14:00 hours. And therefore, the conversation at 17:22 is missing.

I ask you once again to provide it to me as soon as possible.

Regards

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission for processing of complaints filed with the AEPD, consisting of transferring them to the Data Protection Delegates designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the entity being complained against for it to proceed with its analysis and respond to the complainant and this Agency within one month.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow understanding the complainant's claims to be satisfied. Consequently, on August 1, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data

agreed to admit the complaint for processing and informed the parties that the maximum period to resolve the present procedure, which is understood to have commenced through said admission agreement, will be six months.

The aforementioned agreement granted the entity being complained against a hearing procedure, so that within ten working days it could present the allegations it deemed appropriate.

This entity formulated, in summary, the following allegations:

Firstly, the entity states that the complainant submitted several requests on different dates:

- In May 2023, the complainant requested the recordings of calls between June 15 and September 30, 2021, which were made available to them in the Client Area on June 6, 2023.

- In June 2023, the complainant requested the calls between June 18 and June 21, 2021. They state that these recordings were narrowed down and provided on June 22, 2023.

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- In October 2023, the claimant stated that the call from June 18, 2021, at 5:22 PM was not included, indicating that this recording was missing from the information provided. He claims that he communicated in November 2023 the need to extend the deadline to address this request due to its complexity.

- In December 2023, the claimant reiterated the absence of the specific recording, to which internal checks were conducted, concluding that the mentioned call is not recorded in their logs, with the last one recorded being on June 18, 2021, at 4:29 PM.

OPENBANK defends that it has addressed the claimant's requests as established, providing the available recordings and acting in accordance with the applicable regulations. The entity argues that the absence of the mentioned call in the records demonstrates that there is no evidence of its occurrence, and therefore it cannot be provided.

Finally, it requests the AEPD to consider the information request fulfilled and, consequently, to issue a resolution dismissing the claim filed.

FOURTH: After examining the allegations presented by the respondent, they are subject to transfer to the claimant, so that, within a period of fifteen working days, they may formulate any allegations they deem appropriate.

Within the aforementioned period, the claimant proceeded to submit a document summarizing the following allegations:

Firstly, he points out that not all the documentation of the file has been made available to him, which would violate his right of access to it, protected under Article 53.1.a) of Law 39/2015, affecting his right to defense and the principle of equality of arms. For this reason, he requests the urgent submission of the complete file.

Regarding the failure to deliver the requested recording, the claimant argues that the voice is a personal data and, as such, is part of the right of access regulated in Article 15 of the GDPR. He asserts that the respondent has not fulfilled its obligation to provide the recording of the call from June 18, 2021, at 5:22 PM, made from one of its official numbers to the claimant.

The claimant indicates that the respondent must guarantee the existence, availability, and delivery of the requested recording. In the event that the recording does not exist, he demands a clear and justified explanation of the reasons for its absence, in compliance with the proactive responsibility principle established in Article 5.2 of the GDPR.

Furthermore, he argues that it is not the claimant's responsibility to prove the existence of the recording, as this depends exclusively on the technical systems managed by the respondent, who is solely responsible for the preservation of these recordings as part of its activity.

Finally, the claimant requests:

- The submission of the complete file to guarantee his right to defense.

- The immediate delivery of the mentioned call recording or, failing that, an adequate justification in accordance with current regulations.

LEGAL GROUNDS

FIRST: The Presidency of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on

the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as handling complaints submitted by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the claim that gives rise to this procedure, it was transferred to the responsible entity for analysis, to respond to this Agency within one month and to prove that it has provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of this procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“1. When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.”

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In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement for processing. Once this period has elapsed, the interested party may consider their claim accepted.

The purification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that need to be purified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure based on any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the interested party, and to express their reasons in case they do not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication directed to the interested party regarding their request must be expressed in a

concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be understood as granted if the controller provides remote access to the data, considering the request fulfilled (although the interested party may request information regarding the aspects provided in Article 15 of the GDPR).

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The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

In the case analyzed here, the claiming party exercised their right of access arguing that, as the holder of the personal data, they have the right to obtain a copy of the recording of a telephone call held with the claimed party on June 18, 2021, at 17:22 hours. This right, regulated in Article 15 of the General Data Protection Regulation (GDPR), grants them the possibility of accessing the personal data concerning them, including telephone call recordings, as voice is considered personal data.

In response to this request, the claimed party provided access to a set of recordings available in the Customer Area, informing the claimant that these were the communications related to the requested dates. However, the specific recording mentioned by the claiming party was not included in the information provided.

The claimed party responded to the request implicitly denying the provision of the indicated recording, as it did not make specific reference to it and did not expressly justify its non-existence. It limited itself to providing general access to the list of calls available in its system, without specifically addressing the claimant's request regarding the call at 17:22 hours on June 18, 2021.

The right of access, in accordance with Article 15 of the GDPR, must be specific and consistent with the request made. This implies that the data controller must...

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The treatment has the obligation to provide a clear and specific response, either by delivering the requested information or by adequately and motivatedly explaining why it is not possible to provide it.

In this case, a general access to the set of recorded calls is not sufficient; the responding party must expressly inform the interested party whether the requested recording exists or not, and if it does not exist, justify the reasons in accordance with the principle of proactive responsibility established in Article 5.2 of the GDPR.

It is not for this authority to determine the existence or non-existence of the recording, as this obligation rests exclusively with the responding party, who has the technical systems to verify the requested information. The absence of a specific response regarding the specific recording constitutes a breach of the obligations arising from the right of access.

For all the above reasons, it is deemed necessary to require the responding party to expressly communicate to the claimant the existence or non-existence of the indicated call recording, and if applicable, to adequately justify the circumstances of its absence or deletion, thus ensuring compliance with the provisions of the GDPR.

In relation to the request for access to the file made by the claimant, it is necessary to point out that the requirement issued by this authority was not incomplete, as the transfer made was limited to the allegations presented by the responding party against the inadmissibility of the claim, in accordance with the provisions of the applicable procedure.

However, this does not affect the claimant's right to request the administrative file in its entirety, a right that has already been exercised within the framework of the allegations presented. This right, protected under Article 53.1.a) of Law 39/2015, guarantees access to all relevant documentation in the procedure, and will be addressed in accordance with the deadlines and channels established in the current regulations.

Based on the above, considering that this procedure aims to ensure that the guarantees and rights of the affected parties are duly restored, it is appropriate to uphold the claim that initiated this procedure, as it is believed that the right of access was not carried out properly.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. and to urge OPEN BANK, S.A. with NIF A28021079, to, within ten working days from the date this resolution becomes final and enforceable, send to the claimant a certification addressing the requested right of access or to deny it with justification, indicating the reasons why the request cannot be met, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and OPEN BANK, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. 1037-16012024

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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